

25PSCV01285 25PSCV01285

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-09-17

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Case Number: 25PSCV01285 Hearing Date: September 17, 2026 Dept: 6

Plaintiff

Cathay Bank's Request for Entry of Default Judgment

Defendant: Davit Danielyan

TENTATIVE RULING

Plaintiff's request for entry of

default judgment is GRANTED in the reduced amount of \$47,725.71. The Court directs Plaintiff to submit a revised proposed judgment for the Court's review and signature.

BACKGROUND

This

is a lending dispute. On April 10, 2025, plaintiff Cathay Bank (Plaintiff) filed this action against defendant Davit Danielyan aka Davit Null Danielyan and doing business as Danielyan Translation and dba and doing business as [sic] Danielyan Translation Office (Defendant) and Does 1 through 20, alleging causes of action for breach of contract (business loan agreement & promissory note), money lent, and account stated.

On

March 11, 2026, the court clerk entered default against Defendant.

On

May 15, 2026, Plaintiff requested entry of default judgment against Defendant.

On

July 27, 2026, the Court continued the OSC re Entry of Default Judgment to September 17, 2026 to allow Plaintiff to file a supplemental declaration regarding interest by September 7, 2026. Plaintiff did not submit a supplemental declaration.

LEGAL

STANDARD

Code of

Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff

seeks default judgment against Defendant in the total amount of \$64,353.59, including \$45,000.00 in damages, \$16,627.88 in interest, \$1,740.00 in attorney fees, and \$985.71 in costs. The Court finds Plaintiff's judgment request largely in order, except that the evidence submitted does not support the amount of interest requested. Exhibit 3 to Jose Ramirez's declaration does not show \$16,627.88 in interest. (Ramirez Decl., Ex. 3; CIV-100, ¶ 2, subd. (c).) Jose Ramirez's declaration indicates a lesser amount of \$11,027.88 in interest, which also is not supported by the evidence submitted. (Ramirez Decl., ¶ 11, Ex. 3.) The total amount of interest shown on Exhibit 3 of Jose Ramirez's declaration is \$0.00. (Ramirez Decl., Ex. 3.) Plaintiff was given an opportunity to submit a supplement declaration in support of the interest sought. Plaintiff did not file a supplemental declaration. Accordingly, the Court will award no interest, and will instead award judgment in the amount of \$47,725.71, including \$45,000.00 in damages, \$1,740.00 in attorney fees, and \$985.71 in costs.

CONCLUSION

Based on the foregoing, Plaintiff's request for entry of default judgment is \$47,725.71. The Court directs Plaintiff to submit a revised proposed judgment for the Court's review and signature.